

Seven

Noncombatant Immunity and the Force Protection Imperative

“During the Kosovo crisis, pundits at home and abroad charged that the Clinton White House overvalued the lessons of Vietnam and Somalia, and underestimated the willingness of the public for a fight when it perceives important issues at stake. The result, they argue, was a military campaign devoid of daring—so fearful of its own losses that it could not save the Kosovar refugees or effectively punish Serb atrocities.¹”

Contemporary American policy on the appropriate use of military forces reflects deep tensions. The common analysis, as the quotation above suggests, is that American political leaders have concluded that use of American military force will only be politically acceptable if American casualties are kept to a minimum. Partly in negative reaction to the prolonged agony of Vietnam (not to mention the debacles of Lebanon and Somalia), and partly in positive reaction to the apparently bloodless and very quick Gulf War, so the analysis goes, American society has accepted a new standard for acceptable military conflict: immaculate war.

This analysis has a large degree of truth. But there are deeper issues of ethical principle underlying the impulse to have only immaculate interventions. The impulse to intervene comes from

one particular view of international order and of the role of the American military in that order, while the impulse to keep such interventions immaculate arises from the misfit between the interventionist impulse and the moral contract between political leaders and the men and women of the armed services who bear the burden of executing such interventions.

The Interventionist Imperative

American political rhetoric about military intervention has always been moralistic. To the constant frustration of political "realists," American political culture has been notoriously resistant to reducing intervention decisions to clear-eyed (and cold-hearted) assessments of narrowly conceived national interest. No matter how unglamorous the real motives of national interest, interventions as tawdry as the Spanish-American War, our repeated interventions in Nicaragua, or the recent invasion of Panama, have consistently been cloaked in high rhetoric and appeals to moral principle. American political discourse tends to speak in universalizing terms of the war to end all war, of advancing universal human rights and democratic political order, and of opposing tyranny and despotism.

So the fact that our interventions in Kosovo (and Bosnia and Somalia) are spoken of in terms of universalizing claims about the protection of the rights of individuals is not new. Yet it would be a mistake to take this moral rhetoric as merely masking realpolitik. The end of the cold war has created, at least for this historical moment, a time and space in which a genuinely new form of international relations seems possible. Whether that portends great moral progress in international affairs or is a mirage of great moral possibility that will lead to disaster is yet to be determined.

It would also be a mistake to read the present burst of enthusiasm for humanitarian interventions merely as a result of the end of the cold war. It is also the manifestation of a kind of idealism (in the nonpejorative sense) that has entered international law and (primarily via international and nongovernmental organizations) the modern international political scene.²

The expanding array of human rights commitments at the international level in the aftermath of World War II (perhaps best

captured in the post-Holocaust motto, “Never Again”) created a legal framework and on-paper commitments by states to prevent gross violations of human rights. Much of the current confusion of American foreign policy in these areas is the result of the fact that this humanitarian law was never well integrated with the older and more-established state sovereignty law. While committed in principle to universal humanitarian standards, the fact remains that any enforcement of those standards depends almost entirely on the voluntary efforts of sovereign states. Understandably, sovereign states are slow to commit blood and money to causes, no matter how noble, that are not demonstrably connected to vital national interests.

Further, the balance of power and proxy wars of the superpowers in the cold war served to assure that only very rarely would a humanitarian crisis be far enough from superpower rivalry for the humanitarian impulse to be played out. Inevitably, claims to humanitarian concern as a basis for intervention would appear (and usually were) a kind of smokescreen behind which the major states jockeyed for position. Equally inevitably, even the most well intentioned efforts at humanitarian intervention would almost always have secondary effects on perceived interests of the superpowers.

The result of this combination of humanitarian legal development and superpower stalemate was that true humanitarian intervention was rare, and the body of law that justified it in theory had little opportunity to generate precedents in practice and little practical need to be better reconciled with state sovereignty law.

The success at coalition building in the Gulf War at the very time of the end of the cold war led President Bush to imagine a “new world order.” This would be an order, presumably, of united international support for universal values, and would be led by the United States, under the legal auspices of the United Nations.

It fell to the Clinton administration to spell out the place of humanitarian interventions in the national military strategy of the United States in that new order. The first detailed articulation came in May 1994. Presidential Decision Directive #25 (PDD-25) was entitled *The Clinton Administration’s Policy on Reforming Multilateral Peace Operations*. The directive noted that the cold war had severely hampered the ability of the United Nations to do peace operations, but it went on to say: “In the new strategic environment such operations can serve more often as a cost-effective tool to advance American as

well as collective interests in maintaining peace in key regions and create global burden-sharing for peace.”³ At this juncture, I would simply note the ambiguity of linking peace operations to “American as well as collective interests” as if they were a single thing. Further, the term “collective” is itself ambiguous. Does it mean NATO? The UN? Coalitions of the willing that shift from crisis to crisis?

PDD-25 proceeded to lay out a number of criteria for US participation in multilateral peace operations and to suggest internal reforms to the UN necessary for future operations to be more professionally planned and executed from a military point of view. It noted that, as presently structured, the UN lacks competent command and control for complex military operations—not to mention common standards of training, interoperability of equipment, and so on.

In May 1997, PDD-56, “*White Paper: The Clinton Administration’s Policy on Managing Complex Contingency Operations*” was released.⁴ The background statement of this document begins:

In the wake of the Cold War, attention has focused on a rising number of territorial disputes, armed ethnic conflicts, and civil wars that pose a threat to regional and international peace and may be accompanied by natural or manmade disasters which precipitate massive human suffering. We have learned that effective responses to these situations may require multi-dimensional operations composed of such components as political, diplomatic, humanitarian, intelligence, economic development, and security; hence the term complex contingency operations.⁵

As examples of such operations, the directive cited Haiti, Somalia, northern Iraq and the former Yugoslavia. The primary intent of the directive was to institutionalize lessons learned from those operations to better coordinate various US government agencies in future operations. But it also noted that, very often, such contingency operations take place in complex coalitions as well, “either under the auspices of an international or regional organization or in ad hoc, temporary coalitions of like-minded states.”⁶

This framing of international relations in terms of humanitarian interventions in the name of universal principles is not uniquely an

American impulse. UN Secretary General Annan has repeatedly articulated his understanding of the central challenge of the international community in this generation. In his annual report to the General Assembly for 1999, he said, “[T]he core challenge to the Security Council and to the United Nations as a whole in the next century [is] to forge unity behind the principle that massive and systematic violations of human rights—wherever they take place—should not be allowed to stand.”⁷

Annan correctly identifies the main obstacle to such an interventionist imperative: not so much the idea of state sovereignty per se, but rather “the ways in which the Member States of the United Nations define their national interest in any given crisis.”⁸ As he says,

A new, more broadly defined, more widely conceived definition of national interest in the new century would, I am convinced, induce States to find far greater unity in the pursuit of such basic Charter values as democracy, pluralism, human rights, and the rule of law.⁹

Annan’s vision of an effective, consistent, and universal global commitment to the protection of human individuals and their rights appeals to the deepest idealist impulses in all thoughtful people. The Clinton administration policies attempted to go a long way in Annan’s direction, while still operating with a less broadly conceived understanding of national interest than Annan’s. But differing conceptions of national interest and the fact that Annan’s universalizing vision must be accomplished with the forces of sovereign states together generate the competing imperative for US participation in peacekeeping and peacemaking operations: the imperative of force protection. This imperative arises not merely from political constraints, but also from the moral contract between the nation, its citizens, and its military personnel.

The Force Protection Imperative

The dilemma of humanitarian intervention arises from some elementary facts. The “international community” has no army. The United Nations lacks an air force or navy. As Annan states the problem, “Unless the United Nations is given the means and

support to succeed, not only the peace, but the war, too, will be lost.”¹⁰ But what would it mean to “give the means” to the UN?

One possibility is, of course, to give the UN its own organic military command structure and force structure. If ever universal, consistent, and prompt peace enforcement is to become the international norm, this is the direction in which we would have to move. But equally clearly, there is no political consensus in favor of that development, either in the United States or in the world generally. At most, PDD-25 calls for a strengthening of the UN’s capabilities to exercise effective command and control over complex operations by the creation of a small standing military staff, a rapidly deployable headquarters, and prenegotiated contracts for airlift capability, among other things.¹¹

Even though the Clinton administration went further than any previous American administration in linking American strategy to participation in multinational operations, PDD-25 went on to say,

The President retains and will never relinquish command authority over United States forces. On a case by case basis, the President will consider placing appropriate United States forces under the operational control of a competent UN commander for specific UN operations authorized by the Security Council. The greater the United States military role, the less likely it will be that the United States will agree to have a UN commander exercise overall operational control over United States forces. Any large scale participation of United States forces in a major peace enforcement mission that is likely to involve combat should ordinarily be conducted under United States command and operational control or through competent regional organizations such as NATO or ad hoc coalitions.¹²

While this paragraph derives from US policy documents, there can be little doubt that other sovereign states will and must think similar thoughts about putting their military personnel in harm’s way.

Partly, this reluctance comes from a distrust of the competence and training level of commanders from other nations—even nations, like those in NATO, with which the United States has worked and trained for fifty years. But if that were the only objec-

tion, it could (in theory) be addressed by building up a professional officer corps, organic to the UN, and through frequent joint military exercises under UN command and control. Further, as I indicated above, PDD-25 calls for the development of just such a core competency in the UN itself, and it is a kind of capability Secretary General Annan would clearly welcome.

But there is a larger moral question behind this jurisdictional and political struggle. It goes much deeper than practical questions about the ability of the UN to exercise competent and effective command and control over multinational forces. It also goes deeper than the long-standing tension between state sovereignty and effective international organization. At its root, it goes to the implicit moral contract between the nation and its soldiers. For the sake of specificity, I will not deal with the general case of this question, but specifically with the American case: what is the “deal” implicitly made between America’s all-volunteer professional military and national command authorities?

Joining an all-volunteer military such as the contemporary American one may usefully be construed as a kind of “contract.” There is, of course, the literal and legal contract, the stuff of recruiting, in which pay is stipulated and educational benefits are spelled out. But I mean to focus more on the implicit moral contract—the kind of “contract” that social contract theories of the state such as those of Hobbes, Locke, and Rawls imagine.

Like those social contracts, the contract is constructed rather than literal. That is to say, just as there never was a real group of human beings in John Rawls’s “original position,” so there never was a moment when the political leadership of the United States convened a meeting with a group of soldiers and explained the terms of their relationship. But military service is, morally viewed, something more than a career choice.

Military personnel live in a unique moral world. They exist to serve the state. The essence and moral core of their service is to defend that state through the management and application of violence in defense of the territorial integrity, political sovereignty, and vital national interests of that state. Their contract has an “unlimited liability” clause—they accept (and in an all-volunteer force, unquestionably voluntarily accept) the obligation to put their lives

and bodies at grave risk when ordered to do so. Their contract also requires them to kill other human beings and to destroy their property when given legal orders to do so.

The unlimited liability clause and the voluntary consent to kill and destroy make the soldier's contract a morally weighty one. No rational person would enter such a contract without morally serious reasons for doing so. While it is true one can be killed or cause the death of others in many other lines of work, in no other profession are they integral to the enterprise itself. At every moment, the soldier's contract puts him or her at risk, if military power is misused, of committing murder or of being maimed or killed in vain. Only if the soldier, sailor, or airman is confident that political authority will only call on military services for morally legitimate and weighty causes can the contract be entered into with confidence and moral security.

One might say, of course, that a military person's obligation is much simpler than this. All that is required is that he or she follows all legal orders. Political leaders, one might say, make the determination to use the military for whatever purposes they deem worthwhile and, so long as the orders are legal, those decisions are "above the pay grade" of the military person.

Legally, this view is, of course, correct. But the legalist answer is the superficial answer. The military contract obliges military personnel to run grave risks and to engage in morally and personally difficult actions. They do these things on the basis of the implicit promise that the circumstances under which they must do so are based on political leadership's good-faith judgment that the defense of the sovereignty and integrity of the nation (or, by careful extension, the nation's vital interests) require their action. The further a particular engagement or deployment departs from this clear "contractual" case, the more difficult it is for political leadership to offer moral and political justification for any killing and especially dying their forces experience.

The imperative for force protection when we use our forces in humanitarian interventions, peacekeeping, and peacemaking operations is, of course, to a large degree political. It is difficult to maintain political support of operations, no matter how well intended, as the casualties mount and the body bags appear on the news. But this "political" problem has a deep moral root in the soldier's contract.

American military personnel are just that—*American* military personnel. The contract they accepted justifies, including to themselves, their violent actions and the risks they accept in the name of serving that state.

When we use those forces for humanitarian causes distantly related to the terms of the contract, they (and their fellow citizens) may accept those deployments in the name of ideals of “international community”—but only up to a certain (and pretty low) threshold of pain. The imperative for force protection in such deployment is only superficially some aversion to casualties induced by Vietnam syndrome. At a deeper level it goes to the core of the moral meaning of military service to a sovereign state.¹³ To such a use of American forces, the military person may say with moral seriousness, “This isn’t what I signed up for”—and all the more if casualties mount, the length of the deployment drags on, and the probability of achieving the goal of the mission declines.

Kofi Annan is correct when he suggests that building an effective international consensus to use military force consistently for humanitarian purposes would require a broader construal of “national interest” than has classically been the case. As PDD-25 argued, it would require considerable attention to internal UN mechanisms to, command and control such operations. There are far too many legitimate moral reactions to world events that boil down to “somebody should do something about that.” But is the response to be an effective and universal application of political and, if necessary, military power of the international community? If so, such a program would require extensive and concentrated international attention for many years to put political and military structures in place that could begin to meet the need.

The interim use of American forces for purposes tangentially and marginally connected to defense and the national interest will be filled with compromises. Even if the UN or other agencies of the “international community” could find the political and moral will to authorize such interventions consistently and according to uniform moral and political standards of judgment, such deployments would be problematic.

There will inevitably be more missions than willing forces. The political will to support use of national forces for them will be unreliable and easily dissipated. These political realities are grounded in

the deeper moral issue of the contract implicitly made between the nation and its military. A consequence of this moral (and political) reality is that national forces will be used inconsistently in the full spectrum of peace operations, and that force protection will be among the highest priorities when they are so used.

Perhaps “national interest” will come to be defined as broadly as Kofi Annan advocates. The American public would need, of course, to embrace that redefinition with enthusiasm for it to work—and be prepared to sacrifice significant blood and money in the pursuit of national interest, so defined. Or perhaps over time international organizations will be strengthened enough to deploy in such circumstances.

But until that happens, humanitarian intervention and peace operations will be piecemeal, inconsistent, and dependent on coalitions of the willing. They will be (and, morally, need to be) risk-averse, and highly focused on force protection.

Protection of innocent foreign nationals will be a priority as well—for the political reason that any injuring and killing of civilians obviously undermine the moral basis of humanitarian intervention, but also because of the moral concern with protection of innocent life. But even the concern with protection of innocents will probably be secondary to force protection of our own troops, for the weighty moral reasons we have explored here.

Can humanitarian interventions be supported and successfully executed under such constraints? The best answer we have at the moment is, I fear, “occasionally.” Traditional just war thinking places a high premium on the lives of innocents in conflict, and requires combatants to take measures, even at risk to themselves, to protect those lives. But in an operation such as Kosovo, where the moral basis of significant risk of loss by our own soldiers was questionable, there was a significant (and potentially troubling) change to that traditional calculus. Gen. Wesley Clark has written clearly about this:

The minimization of civilian casualties and damage to civilian structures and property—whether Serb or Kosovar—was very high on our priority list. Any lack of discrimination between legitimate military targets and off-limits civilian areas would

have undercut our efforts to explain what we were doing and maintain public support.¹⁴

There can be no doubt that NATO's bombing campaign strove mightily to meet this requirement. Even more than in the Gulf War the weapons employed were precise, both because of technical improvements since the Gulf War and because an even higher percentage of all weapons used were precision munitions. Over 23,000 bombs and missiles were expended in this campaign, and a record 35 percent of them were smart weapons.¹⁵

Despite this emphasis on precision in an air campaign conducted at about 15,000 feet, one cannot help but note that the precision would have been higher still had the aircraft operated at lower altitudes (and greater risk). Further, the decision to adopt and announce in advance an airpower-only campaign certainly lengthened the conflict and ensured that very little would be done in Kosovo to bring the atrocities that were the cause of the campaign itself to a halt. Since those small and dispersed units on the ground were not very susceptible to effective targeting, given the chosen weapons platforms and tactics NATO implicitly embarked on a war of attrition against Serbian infrastructure. No matter how precise the weapons employed, widespread destruction of national infrastructure is inherently an indiscriminate attack on the whole population.

Here we see the deep issue for further thought. No matter how idealistic the motives for humanitarian interventions, force-protection considerations may restrict the means to the point that the operation is unlikely to halt the atrocities in question and will have the foreseeable effect of widespread misery for innocent civilians. And if that is so, one must reassess the moral equation at the basis of the intervention. It is worth thinking about what would have happened had Serbia not capitulated when it did. How widely would we have let the target list expand? How far were we really prepared to go in destroying the Serbian economy, power grid, transportation system, and so forth, in the name of "precision" air war?

Even humanitarian military operations are subject to one of the crucial tests of just war: reasonable hope of success. Most dangerous of all is the impulse to intervene, but to do so with such

restraint and caution that one merely adds damage to an already bad situation. Such interventions may indeed have no reasonable hope of success in solving the problem that caused the intervention in the first place.

Kosovo points them to the deep need to rethink the moral contract between soldiers and their society. We need to consider in hard, practical terms the connection of the means we are willing to use and the political and military ends we seek. Only if we can and do bring effective means to bear on those ends, within the constraints of the morally acceptable, can future humanitarian operations fulfill the requirement of reasonable hope of success.